

Per Curiam

Judge Mireles moved to dismiss the complaint as to him, pursuant to Federal Rules of Civil Procedure 12(b)(1) and (6), for failure to state a claim upon which relief could be granted. The District Court dismissed the claim against the judge and entered final judgment as to him, pursuant to Rule 54(b), on grounds of “complete judicial immunity.” App. to Pet. for Cert. D–2. On Waco’s appeal, the United States Court of Appeals for the Ninth Circuit reversed that judgment. *Waco v. Baltad*, 934 F.2d 214 (1991). The court determined that Judge Mireles was not immune from suit because his alleged actions were not taken in his judicial capacity. It opined that Judge Mireles would have been acting in his judicial capacity if he had “merely directed the officers to bring Waco to his courtroom without directing them to use excessive force.” *Id.*, at 216. But “[i]f Judge Mireles requested and authorized the use of excessive force, then he would not be acting in his judicial capacity.” *Ibid.*

Taking the allegations of the complaint as true, as we do upon a motion to dismiss, we grant the petition for certiorari and summarily reverse.

Like other forms of official immunity, judicial immunity is an immunity from suit, not just from ultimate assessment of damages. *Mitchell v. Forsyth*, 472 U. S. 511, 526 (1985). Accordingly, judicial immunity is not overcome by allegations of bad faith or malice, the existence of which ordinarily cannot be resolved without engaging in discovery and eventual trial. *Pierson v. Ray*, 386 U. S., at 554 (“[I]mmunity applies even when the judge is accused of acting maliciously and corruptly”). See also *Harlow v. Fitzgerald*, 457 U. S. 800, 815–819 (1982) (allegations of malice are insufficient to overcome qualified immunity).

Rather, our cases make clear that the immunity is overcome in only two sets of circumstances. First, a judge is not immune from liability for nonjudicial actions, *i. e.*, actions not taken in the judge’s judicial capacity. *Forrester v. White*, 484 U. S., at 227–229; *Stump v. Sparkman*, 435 U. S., at 360.